

Leave to Amend

The court grants DIAZ fifteen (15) days' leave from the date notice of this order is served to file a second amended cross-complaint in accordance with the court's ruling.

FRANCISCO MAGAN RAMIREZ et al. v. ROGER COX CASE NO. CU24-09307

Motion to Appoint Successor Guardian Ad Litem

TENTATIVE RULING:

On December 5, 2024, Alejandra Jocelyn Magana Reynoso was appointed as guardian ad litem for minor Eliabeth Magana Camacho.

While a settlement in the underlying personal injury case was reached over a year ago, Plaintiff's counsel has lost contact with Ms. Camacho who has been unresponsive despite diligent efforts by counsel to reach her. The court finds good cause to remove Ms. Camacho as guardian ad litem and to appoint Francisco Magana Ramirez as successor guardian ad litem.

The court will process the lodged order forthwith. Plaintiff's counsel shall file the petition for minors compromise forthwith.

VANLEUVEN v. DGDG 18, LLC, ET AL. Case No. CU26-00433

Petition to Compel Arbitration

TENTATIVE RULING:

The unopposed petition to compel arbitration is GRANTED.

The action shall be stayed as to Defendants DGDG and CAPITOL ONE AUTO FINANCE until arbitration is completed. (Code Civ. Proc. § 1281.4.) Arbitration review is set for **May 27, 2027 at 8:30 in Department 8**. Defendants shall initiate arbitration in the next 15 calendar days.

Defendant DGDG established, and Plaintiff admitted in her complaint, that Plaintiff entered into a retail installment sales contract with Defendant DGDG to purchase a used vehicle. The retail agreement contains an arbitration clause invoking the Federal Arbitration Act ("FAA").

DGDG contends that Plaintiff's claims against Defendant are different than her claims related to a service contract or bad repairs against VICTORY and USWC. Given these differences, it does not appear necessary to stay the civil action in order to secure full relief for Plaintiff as inconsistent decisions do not appear to be at issue.

As to CAPITAL ONE, the lender stands in the shoes of the dealer and the outcome of the arbitration will be conclusive as to the lender. (See *Pulliam v. HNL Auto Inc.* (2022) 13 Cal.5th 127, 134; *Garcia v. Pexco, LLC* (2017) 11 Cal.App.5th 782, 786 [equitable estoppel]; *Rowe v. Exline* (2007) 153 Cal.App.4th 1276, 1287 [equitable estoppel].)

Although labeled a request for “public injunctive relief,” this overbroad prayer is not a barrier to arbitration. Based upon the nature of the claims raised in the complaint, the claims are focused on harm to plaintiff and are appropriate for damages not public injunctive relief and do not implicate the *Broughton-Cruz* rule. (See *Clifford v. Quest Software* (2019) 38 Cal.App.5th 745, 755.)

Jessica Fleshman v. City of Fairfield
Case No. CU23-01799

City of Fairfield’s Motion to Continue Trial

TENTATIVE RULING:

CITY OF FAIRFIELD’s (“FAIRFIELD”) motion to continue trial is DENIED. FAIRFIELD moves to continue the trial after one of the two assigned trial attorneys unexpectedly left the law firm.

The law firm retained to represent FAIRFIELD has 20+ attorneys. Ms. Hurtado gave notice to her law firm’s managing partner on April 14, affording 71 days to secure a replacement to assist the other assigned trial attorney. Per moving party, none of the 20+ attorneys employed by the law firm is available to assist in the 25-day trial due to other prior client commitments.

Notably, this is the second trial date set for this case. A prior trial management conference was conducted following which the trial was vacated following a conditional settlement which later fell through.

The moving papers do not establish that all other attorneys in the retained law firm are committed on each day of the scheduled trial, although some minor and brief overlap for individual attorneys may exist. Additionally, the fact that an assigned trial attorney is actually in trial is good cause for a continuance. But the concern that a trial attorney might be in trial is not.

Moving party also indicated an intent to associate another experienced litigator to the case, but that the litigator had a conflicting trial commitment. There are many employment litigation firms in proximity to Solano County given its proximity to Sacramento and the Bay Area. It is unlikely that between April 14 and the filing of this motion on May 1 that no other qualified employment litigation attorney could be identified to associate into this case.